The Legal Questions Arrived All at Once

Where to start when Mom needs care now: four first moves, and what to leave for an attorney.

Mom needs care now, and the legal questions came with it: who can act for her, whether the power of attorney is enough, what happens with the house. The papers are in different places, and nobody is sure what they say.

Start here. Four things, in this order. None of them asks you to decide anything.

1 Find the papers, and put them in one folder

Look for whatever legal papers exist: a power of attorney, healthcare documents, a will, a trust, the deed to the house. Check the desk drawer and the fireproof box, and ask your brother and sister what they are holding. Note the date on each one and where it was. If someone asks for the power of attorney, give a copy and keep the original. [1] [2]

WHY An attorney can't say whether a document does the job until someone knows which ones exist.

2 Write down who each paper names

Read each document for names, not for meaning. Note who it names to act for Mom and in what role: agent, successor agent, trustee, healthcare decision-maker. Whether that authority is enough is the attorney's question: the Consumer Financial Protection Bureau's guide for agents says an agent's authority is strictly limited to what the document and state law allow. [2]

WHY One of the first things an attorney will ask is who is named to act for Mom, and in which document.

3 Write down the facts about the house and anything that has changed hands

Note how the house and Mom's other property are titled, as far as you know. Then list any gifts, transfers or ownership changes already made, with dates, and any the family is talking about. Facts only. How any of it would be treated depends on the details and on your state.

WHY Getting the facts straight is what lets the decisions about the house and the money go to the attorney.

4 Take the decisions to an elder law attorney before anything is changed

Put your questions on one page and bring them, with the folder, to an elder law attorney. Anything the family is only considering waits for that conversation. If you don't have an attorney, the Family Caregiver Alliance says a family can ask its local Area Agency on Aging for a legal consult or hire an attorney who specializes in eldercare law. [3]

WHY A step with legal consequences needs legal advice first, and the attorney needs the facts to give it.

What to leave for an attorney

Finding and writing down are a family's work, and your Medicaid planner can help you organize it. These are legal questions, and they belong to an elder law attorney:

- Who has legal authority to act for Mom, and for what.
- Whether the existing power of attorney or trust is enough for what needs to be done.
- What happens with the house, and whether any name on anything should change.
- How a gift or transfer, made or only discussed, would be treated.

If the hospital or rehab is asking who can sign for Mom

Tell the social worker or the business office which papers you've found and which you're still looking for, and ask exactly what they need. Write down the answer and who gave it.

What this guide doesn't do

It doesn't interpret a document, say who can act for Mom, or decide anything about the house or her money. Nothing here is legal, financial or tax advice. Rules vary by state, and the answers for your family come from an elder law attorney.

Ready for the next step?

You have the papers in one folder, the names and facts written down, and a page of questions. The planning interview looks at the rest of the picture: it asks about your family's situation and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for Mom's care.

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WHERE THIS COMES FROM

Keeping key papers together follows AARP's legal checklist for family caregivers. The points about a power of attorney follow the Consumer Financial Protection Bureau's guide for agents. Where to look for an attorney follows the Family Caregiver Alliance. The order is ours.

1. AARP, A Legal Checklist for Family Caregivers
2. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
3. Family Caregiver Alliance, What should I do to help get my family member's legal and financial affairs in order?

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